



15. **WARSAW CONVENTION:**
 "Where the rules relating to liability established by the Warsaw convention or the cmr convention apply, the carrier's liability is governed by and shall be limited in accordance with such rules. Subject to applicable law, where the Warsaw convention or the cmr convention do not apply, liability to loss or damage is governed by these terms and conditions and shall be limited to proven damages upon an amount not exceeding usd 100 / shipment."
 "NOTHING IN THIS AGREEMENT SHALL LIMIT THE SHIPPER'S ACKNOWLEDGEMENT THAT HE/SHE HAS READ AND UNDERSTANDS THE CONDITIONS, TERMS AND AGREES TO BE BOUND BY EACH OF THEM. ARAMEX'S LIABILITY IS LIMITED TO US\$ 100.00 IN TENDERING THIS SHIPMENT SHIPPER AGREES THAT ARAMEX SHALL NOT BE LIABLE FOR SPECIAL INCIDENTAL OR CONSEQUENTIAL DAMAGES ARISING FROM THE CARRIAGE HEREOF, ARAMEX DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED WITH RESPECT TO THIS SHIPMENT."

CONDITIONS OF CARRIAGE

In tendering the shipment for carriage, the customer agrees to these terms and conditions of carriage and that this air bill is NON-NEGOTIABLE and has been prepared by the customer or on the customer's behalf by ARAMEX. As used in these conditions ,ARAMEX includes Aramex.co.Ltd, all operating divisions and subsidiaries of Aramex.co.Ltd. and their respective agents, servants, officers and employees.

1. SCOPE OF CONDITIONS

These conditions shall govern and apply to all services provided by ARAMEX BY SIGNING THIS AIRBILL. THE CUSTOMER ACKNOWLEDGES THAT HE/SHE HAS READ THESE CONDITIONS AND AGREES TO BE BOUND BY EACH OF THEM. ARAMEX shall not be bound by any agreement which varies from these condition, unless such agreement is in writing and signed by an authorized officer of ARAMEX. In the absence of such written agreement, these conditions shall constitute the entire agreement between ARAMEX and each of its customers. NO employee of ARAMEX shall have the authority to alter or waive these terms and conditions, except as stated herein.

2. ARAMEX'S OBLIGATIONS

ARAMEX agrees, subject to receiving payment of applicable rates and charges in effect on the date of acceptance by ARAMEX of a customer's shipment, to arrange for the transportation of the shipment between the locations agreed upon by ARAMEX and the customer.

ARAMEX reserves the right to transport the customer's shipment by any route and procedure and by successive carriers and according to its own handling, storage and transportation methods.

3.SERVICE RESTRICTION

a) ARAMEX reserves the right to refuse any documents or parcels from any person, firm, or company at its own discretion.

b) ARAMEX reserves the right to abandon carriage of any shipment at any time after acceptance when such shipment could possibly cause damage or delay to other shipments, equipment or personnel, or when any such carriage is prohibited by law or is in violation of any of the rules contained herein.

c) ARAMEX reserves the right to open and inspect any shipment consigned by a customer to ensure that it is capable of carriage to the state or country of destination within the standard customs procedures and handling methods of ARAMEX. In exercising this right, ARAMEX does not warrant that any particular item to be carried is capable of carriage, without infringing the law of any country or state through which the item may be carried.

4. LIMITATION OF LIABILITY

Subject to Section 5 and 6 hereof:

a) ARAMEX will be responsible for the customer's shipment only while it is within ARAMEX'S custody and control. ARAMEX shall not be liable for loss or damage of a shipment while reshipment is out of ARAMEX'S custody or control. ARAMEX'S LIABILITY IS IN ANY EVENT LIMITED TO ONE HUNDRED DOLLARS (US\$100/=) or its equivalent per shipment unless a higher value is declared on the Airway bill at the time of tender and an additional charge is paid for, as assessed and determined by ARAMEX, for each one Hundred Dollars (US\$100/=) or fraction thereof, by which the insured value designated by the customer on the Airway bill exceeds One Hundred Dollars (US\$100/=) per shipment.

b) Notwithstanding the foregoing, should the customer, at the time of tender, declare a higher value than One Hundred Dollars (US\$100.00) on the Airway bill, ARAMEX'S liability shall in any event be limited to the lower of the insured value or the amount of any loss or damage actually sustained by the customer.

c) The actual value of a shipment shall be ascertained by reference to its replacement, reconstitution or reconstruction value at the time and place of shipment, whichever is less, without reference to its commercial utility to the customer or to other items of consequential loss.

d) NOTWITHSTANDING ANY OF THE FOREGOING, THE MAXIMUM INSURED VALUE ON ANY SHIPMENT ACCEPTED BY ARAMEX IS TEN THOUSAND DOLLARS (US\$10,000.00) AND IN NO EVENT SHALL THE LIABILITY OF ARAMEX EXCEED THAT AMOUNT.

5. CONSEQUENTIAL DAMAGES EXCLUDED

ARAMEX SHALL NOT BE LIABLE IN ANY EVENT, FOR ANY CONSEQUENTIAL OR SPECIAL OR INCIDENTAL DAMAGE OR OTHER INDIRECT LOSS HOWEVER ARISING, WHETHER OR NOT ARAMEX HAD KNOWLEDGE THAT SUCH DAMAGE MIGHT BE INCURRED, INCLUDING, BUT NOT LIMITED TO LOSS OF INCOME, PROFITS, INTEREST, UTILITY OR LOSS OF MARKET.

6. LIABILITY NOT ASSUMED:

a) ARAMEX shall be not liable for any loss, damage, delay, misdelivery or nondelivery not caused by its own negligence, or for any loss, damage, delay, misdelivery or non-delivery caused by:

i. the act, default or omission of the shipper or consignee or any other party who claims an interest in the shipment.

ii. the nature of the shipment or any defect, characteristic, or inherent vice thereof.

iii. violation by the shipper or consignee of any term or condition stated herein including, but not limited to, improper or insufficient packing, securing, marking or addressing, misdescribing the contents of any shipment or failure to observe any of these rules relating to the shipments not acceptable for transportation whether such rules are now or hereafter promulgated by ARAMEX.

iv. Acts of God, perils of the air, enemies, public authorities acting with actual or apparent authority or law, acts or omission of postal, customs or other government officials, riots, strikes, or other local disputes, hazard incidents to a state of war, weather conditions, temperature or atmospheric changes or conditions, mechanical or other delay, of any aircraft used in providing transportation services or any other cause reasonably beyond the control of ARAMEX.

v. Acts or omissions of any postal service, forwarder, or any other entity to whom a shipment is tendered by ARAMEX for transportation, regardless of whether the shipper requested or had knowledge of such third party delivery requirement.

vi. Electrical or magnetic injury, erasure, or other such damage to electronic or photographic images or recordings in any form, or damage due to insects or vermin.

b) While ARAMEX will endeavour to exercise its best efforts to provide expeditious delivery in accordance with regular delivery schedules, ARAMEX will not under any circumstances be liable for delay in pickup, transportation or delivery of any shipment regardless of the causes of such delay

7.MATERIALS NOT ACCEPTABLE FOR TRANSPORT:

a) ARAMEX will notify customer from time to time as to certain classes of materials which are not accepted by ARAMEX for carriage. It is the customer's responsibility to accurately describe the shipment on this Airbill and to ensure that no material is delivered to ARAMEX which has been declared to be unacceptable by ARAMEX.

b) ARAMEX will not carry:

i) property, the carriage of which is prohibited by any law, regulation or state or local government of any country from, to or through which the property may be carried:			
and			
firearms	bullion	works of art	negotiable instruments in bearer form
jewelry	precious metals	precious stones	lewd obscene or pornographic material
currency	stamps	deeds	hazardous or combustible material
cashier's checks	money orders	traveler's checks	industrial carbon and diamonds
antiques	plants	animals	

c) In the event that any customer should consign to ARAMEX any such item, as described above, or any item which the customer has undervalued for customs purposes or misdescribed, whether intentionally or otherwise the customer shall indemnify and hold ARAMEX harmless from all claims, damages, fines and expenses arising in connection therewith, and ARAMEX shall have the right to abandon such property and / or release possession of said property to any agent or employee of any national or local government claiming jurisdiction over such materials. Immediately upon ARAMEX'S obtaining knowledge that such materials infringing these conditions have been turned over to ARAMEX shall be free to exercise any of its rights reserved to it under this section without incurring liability whatsoever to the customer.

8. PACKAGING:

The packaging of the customer's documents or goods for transportation is the customer's sole responsibility, including the placing of the goods or documents in any container which may be supplied by the customer to ARAMEX. ARAMEX accepts no responsibility for loss or damage to documents or goods caused by inadequate or inappropriate packaging. It is the sole responsibility of the customer to address adequately each consignment of documents or goods to enable effective delivery to be made. ARAMEX shall not be liable for delay in forwarding or delivery resulting from the customer's failure to comply with its obligations in this respect.

9. NEGLIGENCE:

The customer is liable for all losses, damages and expenses arising as a result of its failure to comply with its obligations under this agreement as a result of its negligence.

10. CHARGES:

Any rates quoted by ARAMEX for carriage are inclusive of local airport taxes, but exclusive of any value added taxes, duties, levies, imposts, deposits or outlays incurred in respect of carriage of the customer's goods. Should the customer indicate by endorsement in the space provided on the airbill that the receiver shall be liable for any amounts due, the customer shall be liable for such customs duty in the event of a default in payment by the receiver. ARAMEX will not be liable for any penalties imposed or loss or damage incurred due to the customer's documents or goods being impounded by customs or similar authorities and the customer hereby indemnifies ARAMEX against such penalty or loss.

11. PROPERTY:

ARAMEX will only carry documents or goods which are the property of the customer and the customer warrants that it is authorized to accept and is accepting these conditions not only on behalf of itself but as agent and on behalf of all other persons who are or may hereafter be interested in the documents or goods. The customer hereby undertakes to indemnify ARAMEX against any damages, costs and expenses resulting from any breach of this warranty.

12. CLAIMS

ANY CLAIMS AGAINST ARAMEX MUST BE SUBMITTED IN WRITING TO THE OFFICE OF ARAMEX NEAREST THE LOCATION WHERE THE SHIPMENT WAS ACCEPTED.

WITHIN SIXTY (60 DAYS) OF THE DATE OF ACCEPTANCE BY ARAMEX.

13. NON-DELIVERY OF SHIPMENT

Notwithstanding the shipper's instruction to the contrary, the shipper shall be liable for all costs and expenses related to the shipment of the package, and for costs incurred in either returning the shipment or warehousing the shipment pending disposition.

14. INSURANCE:

a) ARAMEX maintains cargo liability insurance to the full extent of the liability offered to the shipper.

b) At the request of the shipper and upon payment therefore at the then prevailing rates. ARAMEX will arrange insurance coverage on behalf of the shipper in an amount not exceeding Ten Thousand Dollars (10,000.00)

c) The insurance cover shall be governed by all the terms and conditions contained in the policy of insurance issued by insurance carrier. A certificate evidencing such insurance will be made available to the shipper.

d) CONSEQUENTIAL DAMAGES AND LOSS OR DAMAGE RESULTING FROM DELAYS IN TRANSPORTATION ARE NOT COVERED BY ANY SUCH POLICY OF INSURANCE.

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THIS IS A NON NEGOTIABLE AIRBILL. ALL SERVICES PROVIDED ARE SUBJECT TO THE TERMS AND CONDITIONS SET FORTH ON THE REVERSE OF SHIPPER'S COPY. BY SIGNING THIS AIRBILL, THE SHIPPER ACKNOWLEDGES THAT HE/SHE HAS READ THESE CONDITIONS AND AGREES TO BE BOUND BY EACH OF THEM. ARAMEX'S LIABILITY IS LIMITED TO US\$ 100.00 IN TENDERING THIS SHIPMENT. SHIPPER AGREES THAT ARAMEX SHALL NOT BE LIABLE FOR SPECIAL INCIDENTAL OR CONSEQUENTIAL DAMAGES ARISING FROM THE CARRIAGE HEREOF. ARAMEX DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED WITH RESPECT TO THIS SHIPMENT.